is futile, it may well be argued, unless of course there are legal consequences for living people. In Bhagat Singh's case, he has descendants, such as his nephew, Prof. Jagmohan Singh[15], who has an interest in seeing Bhagat Singh's legacy fully protected. It may, nevertheless, still be possible to say that it is better to remember Bhagat Singh's trial by special tribunal and the Privy Council's ready acceptance of it for what it is—a system of colonial 'justice' and of coercive colonial legalism that does not even pretend to apply the established common law cannons of the rule of law to a trial of young men before it. If this argument has traction, then it does not add anything to Bhagat Singh's historical fame or significance to have his sentence annulled. It is far more important to make Bhagat Singh's ideas better known instead. That is a far more fruitful venture.

On the other hand, it is surely equally arguable that if the possibility exists, then there is no reason why one cannot pursue a legal case for a 'Royal Pardon' from the Queen of England which would set aside Bhagat Singh's conviction and sentence. There is a well-established precedent for this. It comes from the 1993 case of Derek Bentley,[16] which established that the prerogative of mercy is no longer 'an arbitrary monarchical right of grace and favour' but 'a constitutional safeguard against mistakes'. In that case, the High Court in England held that 'we would invite the Home Secretary to look at the matter again and to examine whether it would be just to exercise the prerogative of mercy in such a way as to give full recognition to the now generally accepted view that this young man should have been reprieved'. Fears that 'even a limited form of pardon might lead to a flood of other applications seeking to re-open past convictions' was no justification for not doing so just because 'of the broad scope of the prerogative of mercy', because what needed to be looked at was that 'the matter is exceptional and requires further consideration'. As Lord Justice Watkins explained in that case, 'It should be possible to devise some formula which would amount to a clear acknowledgement that an injustice was done.' The same surely applies in Bhagat Singh's case today. A formula can be devised for all similar miscarriage of justice cases during the days of the Empire. It is worth reminding ourselves that Bhagat Singh was hanged